FONOM
Federation of Northern Ontario Municipalities

To: Delegation during AMO Conference August 2023

From: FONOM Board

Date: August 21, 2023

Subject: Recommendation to address Ontario's Mental Health & Addictions Crisis

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ISSUE:

There has been a system-wide overload of Health and Social programs to handle our communities' current Mental Health and Addiction crisis. The existing systems were not designed to address the increasing numbers of the now concurrent and converging mental health and addiction issues that are partly driving homelessness.

Further complicating the situation is the lack of authority to safely and humanely support those actively suffering on our streets. Currently, no legislation provides authority to temporarily detain individuals that are highly intoxicated from a drug or substance when their own, or others, safety is at risk.

Often, drug-intoxicated individuals walk carelessly into traffic; many lay unconscious in alleys/vestibules, suffer head trauma from falling, are victimized for theft/assault, and at times accost members of the general public.

Secondly, if such authority existed, there is no place currently to hold and medically support those who are grossly intoxicated for their safety while they stabilize.

As a result, the public feels unsafe in their communities, witnessing gross intoxication, drug-induced psychosis, and at times, being confronted by those suffering from severe mental health and addiction issues. Conversely, those suffering from Mental Health and Addictions are left to their own devices, lacking support and initiated care. Municipalities are facing the brunt of the impacts due to these issues.

ANALYSIS:

FONOM/NOMA/NODSA's work on Mental Health, Addiction, and Homelessness and the Bail Reform Taskforce have converged to address a problematic convergence of Social Issues. Agencies, Hospitals, and many of our communities are spending considerable resources to tackle Mental Health, Addiction & Homelessness issues. Despite best efforts, Mental Health incidents and drug overdose numbers are steadily increasing, and our municipal infrastructure cannot handle the growing need.

The Mental Health Act, circa 1990, now 33 years old, and in the opinion of our municipal citizens and human service providers, needs review and modernization to address the current crisis. Although significant changes were made in 2000, much has evolved since that time, including the closure of the North Bay Psychiatric Hospital, the availability and high potency of illicit street drugs, the overdose crisis, and a global pandemic that inadvertently removed in-person social supports and services while government and human service agencies struggled to find a solution.

The Liquor Licence and Control Act, 2019, Sec 31(2) provides the authority for a police officer or conservation officer to arrest without warrant any person who is intoxicated by alcohol if, in the opinion of the officer, it is necessary to do so for the safety of any person. Over time, the incidents of gross intoxication and harm have increased due to drug consumption, not alcohol, rendering this particular authority inapplicable and creating a void in support.

Historically, Police Services would house individuals arrested for public intoxication; however, due to increasing awareness of medical concerns and public safety, Police cells are no longer a viable option for intoxicated individuals, thus creating the additional need for secure detoxification and support beds.

Secure detoxification beds offer individuals a safe and medically supported opportunity to stabilize without charge. Before release, and now with a clearer mind, social supports can be provided to address root causes and navigate the mental health/addictions ecosystem if services are accepted. This type of

interaction offers the best-case scenario for a safe and sober connection to services.

The funding of Secure Beds can not be done by the Province alone. The Federal Government must provide Ontario with new funding for this approach. FONOM would like to help the Ministers as they work with their Federal partners to secure the financing. Municipalities also have a role as more communities are contributing to supportive housing. FONOM will continue encouraging these often-supported measures through our membership and other municipal associations.

RECOMMENDATION:

FONOM recommends that the Attorney General, the Solicitor General, and the Minister of Health work together to address the current Mental Health and Addiction Crisis by reviewing the Mental Health Act and the Controlled Drugs and Substances Act, providing an opportunity to update definitions and authorities to the current need. Particularly, legislation that could address the ability to arrest without warrant, those found intoxicated by drugs or other substances, without charge, for the safety of the individual and/or the safety of others, and language recognizing and affirming the comorbidity and concurrence of Mental Health and Addictions.

FONOM also recommends that the Attorney General, the Solicitor General, and the Minister of Health work together to establish medically (and socially) supported secure beds for individuals to stabilize safely for 24hrs-48hrs. These stabilization and detox beds would hold those in a safe and medically supportive environment, providing 24-hour supervision, assessment, and offers of treatment support. FONOM would work with the Province to secure additional funding from the Federal Government, as they have a significant role in addressing this issue across the country.

FONOM believes that short of the Province establishing Psychiatric Facilities, **Ontario Homes** to secure the most dangerous in our community. FONOM believes the review and changes to the Mental Health Act and the Controlled Drugs and Substances Act, along with funding support for Secure Detox Beds, is the necessary next step and approach to addressing the mental health epidemic and addictions in our communities.